

1 ENGROSSED HOUSE AMENDMENT
TO
2 ENGROSSED SENATE BILL NO. 1859 By: Reinhardt and Hines of the
Senate
3
and
4
Chapman and Hill of the
5 House
6
7
8 [Oklahoma State Bureau of Investigation - Unit -
duties - rules - Fund - expenditures - codification -
9 effective date -
emergency]
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12 AUTHOR: Add the following House Coauthor: Waldron
13 AMENDMENT NO. 1. Strike the stricken title, enacting clause, and
entire bill and insert:
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16 "An Act relating to the Oklahoma State Bureau of
Investigation; creating the Cyber Crime and Fraud
17 Unit; prescribing purpose and duties of the unit;
prohibiting provisions from being construed to expand
18 the jurisdiction of the Bureau; authorizing the
Director of the Bureau to reassign personnel and
19 resources to carry out certain duties; authorizing
the Bureau to promulgate rules; creating the Cyber
20 Crime and Fraud Unit Fund; providing sources of
funds; providing for expenditures from fund;
21 providing for codification; providing an effective
date; and declaring an emergency.
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24 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

1 SECTION 1. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 150.19c of Title 74, unless
3 there is created a duplication in numbering, reads as follows:

4 A. There is hereby created within the Oklahoma State Bureau of
5 Investigation a Cyber Crime and Fraud Unit. The Unit shall operate
6 as an internal division of the Bureau and shall exercise only those
7 investigative powers and the jurisdiction granted to the Bureau by
8 Oklahoma Statutes.

9 B. The purpose of the Cyber Crime and Fraud Unit shall be to
10 enhance the capacity of the Bureau to investigate:

11 1. Cyber-enabled criminal activity including intrusions,
12 network breaches, ransomware, digital extortion, and online
13 exploitation;

14 2. Financial fraud and related schemes including cyber-
15 facilitated fraud, identity theft, and complex financial deception;
16 and

17 3. Criminal activity involving digital evidence, consistent
18 with the existing statutory authority of the Bureau.

19 C. Nothing in this act shall be construed to expand or modify
20 the jurisdiction of the Bureau. The Unit may only initiate or
21 conduct investigations as follows:

22 1. Upon request or referral from a district attorney, law
23 enforcement agency, or state officer authorized under existing law;
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1 2. Upon direction of the Governor, consistent with current
2 statutory authority; or

3 3. As the Bureau is otherwise permitted under existing
4 statutes.

5 D. The Cyber Crime and Fraud Unit shall:

6 1. Conduct investigations involving cybercrime, digital
7 evidence, and fraud-related offenses;

8 2. Provide digital forensics, technical assistance, and
9 analytical support to Bureau agents and requesting agencies;

10 3. Coordinate with federal, state, tribal, and local partners
11 on cyber and fraud investigations;

12 4. Develop and provide training to law enforcement agencies on
13 cybercrime trends, digital evidence handling, and fraud prevention;
14 and

15 5. Maintain specialized personnel, including agents, analysts,
16 forensic examiners, and technical support staff.

17 E. The Director of the Bureau may assign personnel, reallocate
18 resources, and establish internal procedures necessary to carry out
19 the responsibilities of the Unit.

20 F. The Bureau may promulgate rules to effectuate the provisions
21 of this act.

22 SECTION 2. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 150.19d of Title 74, unless
24 there is created a duplication in numbering, reads as follows:

1 There is hereby created in the State Treasury a revolving fund
2 for the Oklahoma State Bureau of Investigation to be designated the
3 "Cyber Crime and Fraud Unit Fund". The fund shall be a continuing
4 fund, not subject to fiscal year limitations, and shall consist of
5 any monies received by the Bureau for deposit in the fund. All
6 monies accruing to the credit of such fund are hereby appropriated
7 and may be budgeted and expended by the Oklahoma State Bureau of
8 Investigation for the purpose of carrying out the duties and
9 functions prescribed in Section 1 of this act. Expenditures from
10 such fund shall be made upon warrants issued by the State Treasurer
11 against claims filed as prescribed by law with the Director of the
12 Office of Management and Enterprise Services for approval and
13 payment.

14 SECTION 3. This act shall become effective July 1, 2026.

15 SECTION 4. It being immediately necessary for the preservation
16 of the public peace, health or safety, an emergency is hereby
17 declared to exist, by reason whereof this act shall take effect and
18 be in full force from and after its passage and approval."
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1 Passed the House of Representatives the 4th day of May, 2026.

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4 Presiding Officer of the House of
Representatives
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6 Passed the Senate the ____ day of _____, 2026.

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9 Presiding Officer of the Senate
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1 ENGROSSED SENATE
2 BILL NO. 1859

By: Reinhardt and Hines of the
Senate

3 and

4 Chapman and Hill of the
5 House

6
7 [Oklahoma State Bureau of Investigation - Unit -
8 duties - rules - Fund - expenditures - codification -
effective date -

emergency]

9
10
11 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

12 SECTION 5. NEW LAW A new section of law to be codified
13 in the Oklahoma Statutes as Section 150.19c of Title 74, unless
14 there is created a duplication in numbering, reads as follows:

15 A. There is hereby created within the Oklahoma State Bureau of
16 Investigation a Cyber Crime and Fraud Unit. The unit shall operate
17 as an internal division of the Bureau and shall exercise only those
18 investigative powers and the jurisdiction granted to the Bureau by
19 Oklahoma Statutes.

20 B. The purpose of the Cyber Crime and Fraud Unit shall be to
21 enhance the capacity of the Bureau to investigate:

22 1. Cyber-enabled criminal activity including intrusions,
23 network breaches, ransomware, digital extortion, and online
24 exploitation;

1 2. Financial fraud and related schemes including cyber-
2 facilitated fraud, identity theft, and complex financial deception;
3 and

4 3. Criminal activity involving digital evidence, consistent
5 with the existing statutory authority of the Bureau.

6 C. Nothing in this act shall be construed to expand or modify
7 the jurisdiction of the Bureau. The unit may only initiate or
8 conduct investigations as follows:

9 1. Upon request or referral from a district attorney, law
10 enforcement agency, or state officer authorized under existing law;

11 2. Upon direction of the Governor, consistent with current
12 statutory authority; or

13 3. As the Bureau is otherwise permitted under existing
14 statutes.

15 D. The Cyber Crime and Fraud Unit shall:

16 1. Conduct investigations involving cyber-crime, digital
17 evidence, and fraud related offenses;

18 2. Provide digital forensics, technical assistance, and
19 analytical support to Bureau agents and requesting agencies;

20 3. Coordinate with federal, state, tribal, and local partners
21 on cyber and fraud investigations;

22 4. Develop and provide training to law enforcement agencies on
23 cyber-crime trends, digital evidence handling, and fraud prevention;
24 and

1 5. Maintain specialized personnel, including agents, analysts,
2 forensic examiners, and technical support staff.

3 E. The Director of the Bureau may assign personnel, reallocate
4 resources, and establish internal procedures necessary to carry out
5 the responsibilities of the unit.

6 F. The Bureau may promulgate rules to effectuate the provisions
7 of this act.

8 SECTION 6. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 150.19d of Title 74, unless
10 there is created a duplication in numbering, reads as follows:

11 There is hereby created in the State Treasury a revolving fund
12 for the Oklahoma State Bureau of Investigation to be designated the
13 "Cyber Crime and Fraud Unit Fund". The fund shall be a continuing
14 fund, not subject to fiscal year limitations, and shall consist of
15 any monies received by the Bureau for deposit in the fund. All
16 monies accruing to the credit of such fund are hereby appropriated
17 and may be budgeted and expended by the Oklahoma State Bureau of
18 Investigation for the purpose of carrying out the duties and
19 functions prescribed in Section 1 of this act. Expenditures from
20 such fund shall be made upon warrants issued by the State Treasurer
21 against claims filed as prescribed by law with the Director of the
22 Office of Management and Enterprise Services for approval and
23 payment.

24 SECTION 7. This act shall become effective July 1, 2026.

SECTION 8. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the Senate the 9th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the ____ day of _____,
2026.

Presiding Officer of the House
of Representatives